

25NNCV02790 25NNCV02790

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-06-26

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Case Number: 25NNCV02790 Hearing Date: June 26, 2026 Dept: D

TENTATIVE RULING

Calendar: 5

Date: June 26, 2026

Case No: 25NNCV02790 Trial Date: n/a

Case Name: Hurtado v. FCA US LLC, et al.

MOTION FOR ATTORNEY'S FEES

[CCP § 1794 subd. (d)]

Moving Party: Plaintiff, Ricardo Hurtado

Responding Party: Defendant, FCA US LLC

RELIEF REQUESTED:

Order awarding attorneys' fees and costs in the amount of \$20,606.23 comprised of attorneys' fees of \$19,315.00 and costs of \$1,291.23.

CAUSES OF ACTION: from Complaint

1) Violation of Song-Beverly Act - Breach of Express Warranty

2) Violation of Song-Beverly Act - Breach of Implied Warranty

3) Violation of Song-Beverly Act – Section 1793.2(b)

4) Violation of Civil Code Section 1796.5

SUMMARY OF FACTS:

This case is a lemon-law action. Ricardo Hurtado ("Plaintiff") alleges that on September 1, 2024, Plaintiff purchased a Jeep Wrangler Sport 2024, for which FCA US LLC ("Defendant") issued express warranties. Plaintiff alleges that the vehicle was delivered with defects and nonconformities to warranties. Plaintiff alleges that the defects and nonconformities to warranty manifested themselves within the express warranty period. The Complaint alleges that notwithstanding Plaintiff's entitlement, Defendant has failed to either promptly replace the new motor vehicle or to promptly make restitution in accordance with the Song-Beverly Act.

ANALYSIS:

"Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (CCP § 1032 subd. (b).) Attorney fees are allowed as costs when authorized by contract, statute or law. (CCP § 1033.5, subd. (a)(10)(B).)

In a lemon law action, costs and expenses, including attorney's fees, may be recovered by a prevailing buyer under the Song-Beverly Act. Civil Code section 1794 states:

"If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."

(Civil Code § 1794, subd. (d).)

Entitlement to Attorneys' Fees

The parties here do not dispute that Plaintiff is the prevailing parties pursuant to a February 4, 2026, Settlement Agreement which provides for an award of attorneys' fees, costs, and expenses to be determined by noticed motion. (Acosta Decl., ¶ 29.) Thus, Plaintiff is the prevailing party in this action and is entitled to a reasonable amount of attorneys' fees.

Reasonableness of Fees

Plaintiff seeks an award of attorneys' fees and expenses in the total amount of \$20,606.23 consisting of: (1) \$19,315.00 in attorneys' fees; and (2) \$1,291.23 in costs. The motion seeks approximately 49.00 hours of time spent by attorneys at The Lemon Pros, LLP at billing rates ranging from \$250.00 to \$525.00 per hour.

Hourly Rate

In determining a reasonable attorneys' fee, the trial court begins with the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.) The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 36.) These factors include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (Ibid.)

"The reasonable hourly rate is that prevailing in the community for similar work." (PLCM Group, supra, 22 Cal.4th at p. 1095 ["The experienced trial judge is the best judge of the value of professional services rendered in his court."].)

In connection with attorneys' fee awards under the Song-Beverly Act, "The statute 'requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount. A prevailing buyer has the burden of 'showing that the fees incurred were "allowable," were "reasonably necessary to the conduct of the litigation," and were "reasonable in amount." ' ' ' (Goglin v. BMW of North America, LLC (2016) 4 Cal.App.5th 462, 470, quoting Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104.)

In the opposition, Defendant argues that the billing rates charged are unreasonable. Defendant requests that the Court cap the partner rates at \$450.00 per hour, associate rates at \$350.00 per hour, and paralegal rates at \$150.00 per hour. (Opp., p. 4:19-22.)

The moving papers submit evidence justifying the billing rates claimed, describing the experience and expertise of each attorney who billed on this matter (Acosta Decl., ¶¶ 2-10) The rates requested conform with what this Court would expect to be charged in matters of this nature. The Court has reviewed all evidence submitted and is familiar with the customary billing rates in this county and in cases of this nature. Under the circumstances, the Court finds the billing rates reasonable, and the Court will not reduce the billing rates charged. The Court will however, take into account the high hourly rates charged and counsels' attested levels of expertise when assessing whether the total number of hours expended was reasonable.

Number of Hours

Plaintiff's fee recovery is based on 49.00 hours of time spent litigating this case through the instant motion for which Plaintiff has submitted billing records. (Acosta Decl., Ex. A.) Defendant objects to Plaintiff's requested hours on the grounds that several of the billing entries are duplicative and unreasonable. (Opp., pp. 5:5-7:6.)

"In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Premier Medical Management Systems, Inc. v. California Ins. Guarantee Ass'n (2008) 163 Cal.App.4th 550, 564.)

First, Defendant objects to 1.4 hours billed on 4/24/25 for "review file including client notes, repair records, financial documents, analyze legal claims in preparation for drafting complaint." Defendant argues that this time spent at the highest billable rate is unnecessary and duplicative of the same or similar tasks billed by another associate and paralegal working on this matter. Upon review, the Court agrees that the time is duplicative of time billed by other timekeepers. The Court therefore reduces the fee by 1.4 hours, in the amount of \$735.00.

Second, Defendant objects to 0.9 hours billed on 4/24/25 for "review repair history and client notes and legal research regarding possible applicable class action lawsuits and draft memorandum regarding the same" on grounds that the work is duplicative and unreasonable. Because the Court has already reduced the duplicative hours for this task, the Court declines

to reduce the instant billing entry. Accordingly, the Court declines to reduce the fees on this ground.

Third, Defendant objects to 2.4 hours billed on 6/8/25 for "Research NHTSA database regarding applicable recalls...and technical service bulletins..." and 0.8 hours billed for "Draft memorandum regarding applicable TSB and recalls." Defendant argues that this a routine task that primarily involves searching readily available resources and preparing a memorandum summarizing the research should have required minimal time. Upon review of the time entries, the Court does find the time to be unreasonably incurred. Accordingly, the Court declines to reduce the fees on this ground.

Fourth, Defendant objects to 1.8 hours billed on 6/9/25 for "Draft repair chronology." The time spent on this task is unreasonable considering Plaintiff only had 5 repair visits for defects with the subject vehicle. (Acosta Decl., ¶ 13.) The Court therefore reduces the fee by 0.9 hours in the amount of \$225.00.

Fifth, Defendant objects to 2.3 hours billed on 7/20/2025 for "Case analysis and review of FCA's Initial Disclosure Document Production." Defendant argues that the entry is vague and provides insufficient detail to assess the necessity or reasonableness of the time expended. The Court agrees. Moreover, reviewing the standard initial disclosure documents in a Lemon Law action is a routine task. Given counsel's professed experience in Lemon Law litigation, completing such a review should require minimal time. The Court therefore reduces the fee by 1.3 hours in the amount of \$585.00.

Sixth, Defendant objects to 1.3 hours billed on 10/26/2025 for "Review file, repair history, damages and draft Plaintiff's Confidential Mediation Brief." Upon review, the Court finds that the time spent to review the file, repair history and damages is duplicative as there are several entries by various timekeepers for the same task throughout the litigation. The Court therefore reduces the fee by 0.6 hours in the amount of \$270.00.

Seventh, Defendant objects to 1.5 hours billed on 7/16/2025 for "Review FCA's Initial Disclosure Document Production, index notate documents for attorney review, name and update case file." Upon review, the Court finds that time spent on this task is duplicative. The Court therefore reduces the fee by 1.5 hours in the amount of \$375.00.

Lastly, Defendant objects to 5.5 hours anticipated to review the opposition, draft a reply, review the file and records in preparation for the hearing and attend the hearing on the instant motion. The Court does not find this time to be unreasonable. Accordingly, the Court declines to reduce the fees on this ground.

Having analyzed the motion and pleadings filed, and having reviewed the billing statements provided, the Court determines that a reasonable lodestar in this case is \$17,125.00 representing 43.3 hours.

Entitlement and Reasonableness of Costs

Allowable costs "shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (CCP § 1033.5, subd. (c)(2).) Any items not specifically mentioned by statute "may be allowed or denied in the court's discretion." (CCP, § 1033.5 subd. (c)(4).)

Song-Beverly allows a successful plaintiff to recover both "costs" and "expenses." (Civ. Code, § 1794, subd. (d).) Courts have held that "it is clear the Legislature intended the word

'expenses' to cover items not included in the detailed statutory definition of 'costs.'" (Jensen v.

BMW of North America, Inc. (1995) 35 Cal.App.4th 112, 137.) The court in Jensen

held that “[t]he legislative history indicates the Legislature exercised its power to permit the recovery of expert witness fees by prevailing buyers under the Act ... ,” noting that the legislature included “expenses” in the lemon law act because “[t]he addition of awards of “costs and expenses” by the court to the consumer to cover such out-of-pocket expenses as filing fees, expert witness fees, marshal’s fees, etc., should open the litigation process to everyone.’

[Citation.]” (Ibid.)

Plaintiffs request a total of \$1,291.23 in litigation costs and expenses. (Acosta Decl., Ex. B.) The items claimed are proper and necessary on their face, shifting the burden to Defendant to show that they were not reasonable or necessary. Defendant in opposition does not contest the costs. Thus, the costs and expenses are awarded in full as requested in the sum of \$1,291.23.

RULING:

Plaintiffs’ Motion for Attorney Fees, Costs, and Expenses is GRANTED, IN PART.

The Court finds that reasonable attorney’s fees, costs and expenses are:

Lodestar Adjusted = \$17,125.00

Expenses and Costs = \$1,291.23

Total Award= \$18,416.23

The total fee award of \$18,416.23 [\$20,606.23 sought] is to be awarded to Plaintiff Ricardo Hurtado against Defendant FCA US LLC and added to the judgment.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.